

CV-25-011109 DOE 1 , JANE vs ALTMAN, ROBERT J, MD - a) Defendant Sutter Gould Medical Foundation's Demurrer to Plaintiffs' First Amended Complaint - SUSTAINED, in part, with leave to amend; SUSTAINED, in part, without leave to amend; OVERRULED, in part; b) Defendant Sutter Gould Medical Foundation's Motion to Strike Portions of Plaintiffs' First Amended Complaint - DENIED, as MOOT.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: a) With regard to Defendant's demurrer to the entire pleading based on uncertainty and misjoinder, the Court notes that the law recognizes the proper joinder of multiple claims against an institutional defendant where the alleged institutional conduct is common to all plaintiffs and common questions regarding that conduct are present. . (See, e.g. Moe v. Anderson (2012) 207 Cal.App.4th 826, 832–836; Smith v. Superior Court (2026) 121 Cal.App.5th 607, 621–622.) Therefore, the Court finds that Plaintiffs' allegations against the moving defendant are properly pursued jointly herein and are sufficiently certain at this stage to inform the defendant of the allegations against it requiring response. Therefore, Defendant's demurrer to the entire pleading on these grounds is OVERRULED. With regard to the Second Cause of Action (Bane Act violation), the Court finds that the pleading fails to sufficiently allege the stated claim. Specifically, the pleading fails to allege the moving defendant's use of threats, intimidation, or coercion to deprive Plaintiffs of their rights. Therefore, the demurrer to this claim is SUSTAINED with leave to amend. With regard to the Fourth Cause of Action for Sexual Harassment pursuant to Civ. Code § 51.9, the Court finds that the pleading is deficient with regard to the factual basis underlying Jane Doe #5's claim pursuant to Civ. Code § 51.9. Specifically, the pleading fails to provide sufficient information from which to ascertain (1) the applicable statutory elements relative to her claim, and (2) whether such elements are sufficiently alleged. Therefore, the demurrer to this claim is SUSTAINED with leave to amend in this regard. With regard to the Eleventh Cause of Action for Gross Negligence, the Court finds that California law does not support an independent cause of action for gross negligence, which differs from ordinary negligence in degree, not in kind. (Epochal Enterprises, Inc. v. LF Encinitas Properties, LLC (2024) 99 Cal.App.5th 44, 55-56.) As the pleading already asserts a cause of action for negligence, this claim is duplicative and unnecessary; therefore, the demurrer to the Eleventh Cause of Action is SUSTAINED without leave to amend. With regard to the Sixteenth Cause of Action for Aiding and Abetting, the Court finds that the factual allegations do not state facts supporting a conscious decision by the moving defendant to participate in and render substantial assistance to Dr. Altman's alleged tortious activity. (See, e.g., George v. eBay, Inc. (2021) 71 Cal.App.5th 620, 641-642; Austin B. v. Escondido Union School Dist. (2007) 149 Cal.App.4th 860, 879.) Therefore, the demurrer to this claim is SUSTAINED with leave to amend. The Court finds that the remaining challenged claims are sufficiently alleged at this stage of the case. Therefore, the demurrer to the First, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Fifteenth, Seventeenth, Eighteenth and Nineteenth Causes of Action is OVERRULED. Plaintiffs shall submit their Second Amended Complaint within 20 days. b) The motion to strike is MOOT in view of the Court's ruling on the demurrer, above.

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a) With regard to Defendant's demurrer to the entire pleading based on uncertainty and misjoinder, the Court notes that the law recognizes the proper joinder of multiple claims against an institutional defendant where the alleged institutional conduct is common to all plaintiffs and common questions regarding that conduct are present. . (See, e.g. Moe v. Anderson (2012) 207 Cal.App.4th 826, 832–836; Smith v. Superior Court (2026) 121 Cal.App.5th 607, 621–622.) Therefore, the Court finds that Plaintiffs' allegations against the moving defendant are properly pursued jointly herein and are sufficiently certain at this stage to inform the defendant of the allegations against it requiring response. Therefore, Defendant's demurrer to the entire

pleading on these grounds is OVERRULED.

With regard to the Second Cause of Action (Bane Act violation), the Court finds that the pleading fails to sufficiently allege the stated claim. Specifically, the pleading fails to allege the moving defendant's use of threats, intimidation, or coercion to deprive Plaintiffs of their rights. Therefore, the demurrer to this claim is SUSTAINED with leave to amend.

With regard to the Fourth Cause of Action for Sexual Harassment pursuant to Civ. Code § 51.9, the Court finds that the pleading is deficient with regard to the factual basis underlying Jane Doe #5's claim pursuant to Civ. Code § 51.9. Specifically, the pleading fails to provide sufficient information from which to ascertain (1) the applicable statutory elements relative to her claim, and (2) whether such elements are sufficiently alleged. Therefore, the demurrer to this claim is SUSTAINED with leave to amend in this regard.

With regard to the Eleventh Cause of Action for Gross Negligence, the Court finds that California law does not support an independent cause of action for gross negligence, which differs from ordinary negligence in degree, not in kind. (*Epochal Enterprises, Inc. v. LF Encinitas Properties, LLC* (2024) 99 Cal.App.5th 44, 55-56.) As the pleading already asserts a cause of action for negligence, this claim is duplicative and unnecessary; therefore, the demurrer to the Eleventh Cause of Action is SUSTAINED without leave to amend.

With regard to the Sixteenth Cause of Action for Aiding and Abetting, the Court finds that the factual allegations do not state facts supporting a conscious decision by the moving defendant to participate in and render substantial assistance to Dr. Altman's alleged tortious activity. (See, e.g., *George v. eBay, Inc.* (2021) 71 Cal.App.5th 620, 641-642; *Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 879.) Therefore, the demurrer to this claim is SUSTAINED with leave to amend.

The Court finds that the remaining challenged claims are sufficiently alleged at this stage of the case. Therefore, the demurrer to the First, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Fifteenth, Seventeenth, Eighteenth and Nineteenth Causes of Action is OVERRULED.

Plaintiffs shall submit their Second Amended Complaint within 20 days.

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